

Nepal Citizenship Act, 2006

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Amending Acts

1. Act to Amend Some Nepal Acts, 2064 2064.05.09
2. Act to Amend Some Nepal Acts, 2072 2072.11.13
3. Nepal Citizenship (First Amendment) Act, 2079 2080.02.17
4. Nepal Citizenship (Second Amendment) Act, 2082 2082.06.05

Act No. 25 of the year 2063

An Act Made to Amend and Consolidate the Nepal Law Relating to Citizenship

Preamble: Whereas, in the existing context where, as a result of the historic people's movement, the sovereignty of Nepal is vested in the Nepalese people and the source of state power is the Nepalese people themselves, feeling the difficult situation faced by Nepali citizens in the past due to their inability to obtain citizenship certificates, and in accordance with the resolve made by the Declaration of the House of Representatives, 2063, to resolve the issues relating to citizenship within the state of Nepal as soon as possible, based on the political agreement dated Kartik 22, 2063, it is desirable to amend and consolidate the existing legal provisions in a timely manner to make provisions for the acquisition, termination, and other matters relating to the citizenship of Nepal;

Therefore, in the first year after the issuance of the Declaration of the House of Representatives, 2063, this Act is enacted by the House of Representatives. 1. Short Title and Commencement: (1) This Act may be cited as the "Nepal Citizenship Act, 2063."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Minor" means a person who has not completed the age of sixteen years.

(b) "Person" means a natural person.

(c) "Prescribed" or "as prescribed" means as prescribed or in the manner prescribed by the rules framed under this Act. 3. Acquisition of Nepali Citizenship by Descent: (1) Any person, at the time of whose birth, his or her father or mother was a citizen of Nepal, such person shall be a citizen of Nepal by descent.

(2) Notwithstanding anything contained in Sub-section (1), in the case of children born from a female Nepali citizen married to a foreign citizen, Sub-section (2) of Section 5 shall apply. Amended by the first amendment.

(3) Every minor found within Nepal, whose paternity and maternity are not known, shall, until the whereabouts of his or her father or mother are discovered, be deemed to be a citizen of Nepal by descent, and such person may obtain Nepali citizenship by descent after completing the age of sixteen years.

Added by the first amendment.(4) The offspring of a citizen who obtained Nepali citizenship by birth before

Ashwin 3, 2072, if both the father and mother are citizens of Nepal, such offspring shall obtain Nepali citizenship by descent after completing the age of sixteen years. Added by the second amendment.(4a) Notwithstanding anything contained in Sub-section (4), in the case of a person whose one parent obtained Nepali citizenship by birth and the other parent died or is untraceable before obtaining Nepali citizenship, Sub-section (5a) of Section 5 shall apply. Added by the first amendment.(5) A person born in Nepal to a Nepali citizen mother, who resides in Nepal, and whose father cannot be identified, shall obtain Nepali citizenship by descent. Added by the second amendment.(5a) If a person born in Nepal to a Nepali citizen mother, who resides in Nepal, has a father who is untraceable and whose identity cannot be established, or the mother cannot identify that a particular person is the father, or if such person and his/her mother make a self-declaration that even though the father's name is mentioned in the person's birth certificate or educational qualification certificate or any other evidence, the father's identity cannot be disclosed, then such person shall be deemed to have an unidentifiable father, and such person shall obtain citizenship by descent pursuant to Sub-section (5). Added by the first amendment.(6) Notwithstanding anything contained in Sub-section (2), a person born in Nepal to a Nepali female citizen married to a foreign citizen, if at the time of obtaining Nepali citizenship, both his/her mother and father are Nepali citizens, such person born in Nepal shall obtain Nepali citizenship by descent. Added by the first amendment.(7) If it is determined that the father of a person who has obtained citizenship pursuant to Sub-section (5) is a foreigner, the citizenship obtained by descent by such person shall not be maintained, and such person shall obtain naturalized citizenship upon submitting the certificate of citizenship obtained by descent, after making a self-declaration as prescribed that he/she has not obtained citizenship of any foreign country based on the father's citizenship. Added by the first amendment.(8) If the father or mother of a person who has obtained citizenship pursuant to Sub-section (3) is discovered, the following shall be done regarding the citizenship obtained by such person:-

(a) If such person is eligible for Nepali citizenship by descent under this Act, the citizenship shall be maintained by updating the details accordingly,

(b) If such person is eligible for naturalized Nepali citizenship under this Act, the citizenship obtained by descent shall be revoked, and naturalized citizenship shall be granted to such person. Repealed by the first amendment.4. 5.

Acquisition of Naturalized Nepali Citizenship: (1) If a foreign woman married to a Nepali citizen wishes to obtain Nepali citizenship, she shall submit an application in the prescribed format to the prescribed authority. While submitting such application, along with the evidence of the marital relationship with the Nepali citizen, she shall also submit proof of having initiated proceedings to renounce her foreign citizenship. (2) In the case of children born from a Nepali citizen woman married to a foreign citizen, Deleted by the first amendment if they have permanent residence in Nepal and have not obtained the citizenship of any foreign country based on the father's citizenship, they may be granted naturalized citizenship as prescribed. (3) A person wishing to obtain naturalized citizenship pursuant to Sub-section (2) shall submit an application to the prescribed authority attaching the following documents:- (a) Copy of the mother's Nepali citizenship certificate, (b) Recommendation of the concerned Amended by the Act to Amend Some Nepal Acts, 2072.Rural Municipality or Municipality stating that he/she has permanent residence in Nepal Deleted by the first amendment , (c) Self-declaration made as prescribed Amended by the first amendment.by him/her and his/her mother Amended by the second amendment.stating that he/she has not taken the citizenship of any foreign country based on the father's citizenship. Added by the second amendment.Provided, if at the time of application the mother is dead, as evidenced, or is not of sound mind, as certified by a doctor, the mother's self-declaration shall not be required. (4) Among foreign citizens who have fulfilled the following conditions and circumstances, if the Government of Nepal determines on reasonable grounds that a person has made or

can make a special contribution to science, philosophy, art, literature, world peace, human welfare, or the industrial, economic, or social progress of Nepal, such person may be granted naturalized Nepali citizenship as prescribed:- (a) Knows how to speak and write Nepali or any other language prevalent in Nepal, (b) Has settled in Nepal by engaging in some occupation, (c) Has renounced or declared to renounce the citizenship of another country, (d) Has resided in Nepal for at least fifteen years, (e) Is a citizen of a country that has a legal provision or practice of granting naturalized citizenship to Nepali citizens, (f) Is of good character, (g) Is mentally sound. (5) Notwithstanding anything contained in Sub-section (4), among the children of a person who has obtained naturalized Nepali citizenship, a child born before such person obtained that citizenship may obtain naturalized Nepali citizenship as prescribed.

Added by the second amendment.(5a) A person referred to in Sub-section (4a) of Section 3 may obtain naturalized citizenship as prescribed upon making a self-declaration accordingly. Added by the second amendment.(5b) A person born abroad to a Nepali citizen mother, who has permanent residence in Nepal, has not taken the citizenship or passport of a foreign country, and whose father is not identified, may obtain naturalized Nepali citizenship upon making a self-declaration as prescribed by such person and his/her mother.

(6) A person entitled to receive naturalized Nepali citizenship under this section shall be administered an oath as per the Schedule and provided a Nepali citizenship certificate in the prescribed format, and from the date of receiving such certificate, such person shall become a naturalized citizen of Nepal. 6. Honorary Citizenship of Nepal may be Granted: Notwithstanding anything contained in Section 5, the Government of Nepal may grant honorary citizenship of Nepal to a person of international fame. 7. Citizenship by Incorporation of Territory: If any territory is acquired to be incorporated within Nepal, a person within that territory shall, subject to this Act, be deemed to be a citizen of Nepal from the date specified in the notification issued by the Government of Nepal by publishing a notice in the Nepal Gazette as prescribed. Added by the first amendment.7a.

Non-Resident Nepali Citizenship may be Obtained: (1) A person who has acquired the citizenship of a foreign country, resides in a country other than a member state of the South Asian Association for Regional Cooperation, and whose or whose father or mother, grandfather or grandmother was previously a citizen of Nepal by descent or birth and later acquired the citizenship of a foreign country, may obtain Non-Resident Nepali Citizenship entitling them to enjoy economic, social, and cultural rights. (2) A person wishing to obtain Non-Resident Nepali Citizenship pursuant to Sub-section (1) shall submit an application as prescribed to the prescribed authority, attaching the following documents:- (a) Proof that the applicant or his/her father or mother, grandfather or grandmother was a citizen of Nepal, (b) If the concerned person had previously taken Nepali citizenship, proof of renunciation of that citizenship, (c) Proof of citizenship of a foreign country, (d) Proof of residence in a country other than a member state of the South Asian Association for Regional Cooperation, (e) A commitment letter to abide by the Constitution and laws of Nepal. (3) A person who had previously taken Nepali citizenship and has not returned the citizenship certificate, while submitting an application for Non-Resident Nepali Citizenship pursuant to Sub-section (2), shall also submit the Nepali citizenship certificate previously taken by him/her. (4) After receiving an application pursuant to Sub-section (2), the prescribed authority shall, upon examining the necessary evidence, grant Non-Resident Nepali Citizenship to such person as prescribed. (5) A person obtaining Non-Resident Nepali Citizenship pursuant to Sub-section (4) shall be administered an oath as prescribed. (6) If a person who has obtained Non-Resident Nepali Citizenship under this section is found to have obtained such citizenship by providing false information, or if it is determined that such person has acted against the independence, sovereignty, territorial integrity, or national interest of Nepal, the Government of Nepal shall revoke the Non-Resident Nepali

Citizenship obtained by such person. 8.

Application Required for Obtaining Citizenship Certificate: (1) A person who has completed the age of sixteen years and wishes to obtain a Nepali citizenship certificate by descent under Section 3 shall submit an application to the prescribed authority, attaching copies of the following documents:- (a) Nepali citizenship certificate of the father or mother, or of a relative within three generations on his/her ancestral line, Deleted by the first amendment.(b) Added by the first amendment.(a1) In the case of a person born in Nepal to a Nepali citizen mother, residing in Nepal, and whose father cannot be identified, a self-declaration as prescribed made by such person and his/her mother stating that the father's identity cannot be identified, Provided, if at the time of application the mother of such person is dead or is not of sound mind, a self-declaration made by the applicant along with proof thereof shall be attached. (b) Recommendation made by the Amended by the Act to Amend Some Nepal Acts, 2072.Rural Municipality or Municipality showing the place of birth and Deleted by the first amendment. relationship. Added by the first amendment.(c) Notwithstanding anything contained in Clauses (a) and (b), in the case of the following persons found within Nepal whose paternity and maternity are not known, the following documents:- (1) If brought up in an institution recognized by the Government of Nepal such as a children's home or orphanage, the recommendation of such institution and, based thereon, the recommendation of the concerned local level, (2) If brought up by a legal guardian, the citizenship certificate of such guardian along with an attestation made by him/her, and the recommendation of the concerned local level, (3) If brought up in any other manner, the recommendation of the concerned local level. Added by the first amendment.(1a) Notwithstanding anything contained in Clause (a) of Sub-section (1), when submitting an application to obtain a citizenship certificate pursuant to Sub-sections (4) and (6) of Section 3, copies of the Nepali citizenship certificates of both the father and mother shall be attached. (2) Deleted by the first amendment. (3) After receiving an application pursuant to Sub-section (1) Deleted by the first amendment., the prescribed authority shall, upon conducting an inquiry based on the evidence received, provide the Nepali citizenship certificate to such person. Added by the first amendment.(3a) If the evidence as per Sub-section (1) cannot be submitted, the prescribed authority shall issue a notice to a family member to appear at the concerned office for attestation. Explanation: For the purpose of this section, "family member" means father, mother, husband, wife, grandfather, grandmother, brother, sister, uncle, aunt, elder brother, younger brother.

Amended by the first amendment.(4) If a person cannot submit the evidence as per Sub-section (1), or if attestation cannot be obtained from a family member pursuant to Sub-section (3a), the prescribed authority may, after conducting a spot inspection, provide a Nepali citizenship certificate based on the attestation made at the inspection site by at least two persons who have already taken Nepali citizenship certificates and reside in the same ward and who know the applicant, and by at least one office bearer or member of the concerned local level, and on the recommendation of the concerned Ward Committee. (5) While conducting a spot inspection pursuant to Sub-section (4), the fact that the applicant was born in Nepal and has continuous permanent residence must be clearly mentioned. (6) If, during the inquiry under Sub-section (3) or (4), an applicant is not found eligible to receive a Nepali citizenship certificate, a decision to that effect shall be made within the prescribed period and the applicant shall be informed accordingly. Added by the first amendment.8a. Granting Citizenship with Identity: (1) A person obtaining Nepali citizenship by descent under this Act may be granted citizenship mentioning the surname and address chosen by such person from among the surnames and addresses of the mother or father. Added by the second amendment.(1a) If a person submits an application stating that he/she does not wish to mention the name, surname, and address of either the mother or father in the citizenship certificate, the Nepali citizenship certificate to be issued to such person shall be issued without mentioning the name, surname, and address of the mother or father whose

mention is not desired. (2) Notwithstanding anything contained in Sub-section (1) Added by the second amendment.and (1a), the names and details of both the mother and father shall be kept in the citizenship records. (3) Gender identity shall also be disclosed as prescribed in the Nepali citizenship certificate issued under this Act. 9. Authority to Issue Citizenship Certificate: The authority to issue a citizenship certificate Deleted by the first amendment.by descent or naturalized Nepali citizenship shall vest in the prescribed authority. 10.

Nepali Citizenship Not Maintained: (1) If a citizen of Nepal voluntarily acquires the citizenship of a foreign country, his/her Nepali citizenship shall not be maintained. (2) After a Nepali citizen gives notice as prescribed to renounce Nepali citizenship, the prescribed authority shall register such notice, and from the date of such registration, his/her Nepali citizenship shall not be maintained. (3) If a person is removed from Nepali citizenship under Section 14, the Nepali citizenship of such person shall not be maintained from the date of such removal. (4) If a situation arises where a person simultaneously acquires the citizenship of Nepal and a foreign country, such person shall choose the citizenship of one country within two years of completing the age of sixteen years. If citizenship is not chosen accordingly, after the expiry of that period, his/her Nepali citizenship shall not be maintained. (5) If a question arises as to whether a citizen of Nepal has acquired the citizenship of a foreign country or not, the prescribed authority shall decide according to the prevalent law. 11. Reinstatement of Nepali Citizenship: If a Nepali citizen, after acquiring the citizenship of a foreign country, returns to and resides in Nepal and submits proof of renunciation of the citizenship of the foreign country to the prescribed authority, his/her Nepali citizenship shall be reinstated from the date of registration of such proof. 12. Cancellation of Citizenship Certificate: If it is proven that a Nepali citizen has obtained a Nepali citizenship certificate by providing false information, the prescribed authority shall cancel such citizenship certificate. 13. Not to Take Dual Citizenship Certificates: No person shall take more than one citizenship certificate. Provided, that if a person wishes on the basis of migration, the concerned office may revoke the citizenship previously taken by such person and issue another citizenship certificate; there shall be no bar to this. 14. Removal from Nepali Citizenship: (1) If it is proven that a foreign person has obtained a Nepali citizenship certificate by providing false information or statement and falsely claiming to be a Nepali citizen, the Government of Nepal shall cancel such person's Nepali citizenship certificate and order his/her removal from being a Nepali citizen. (2) An appeal may lie against an order issued by the Government of Nepal under this section removing a person from Nepali citizenship, within thirty-five days to the concerned Amended by the Act to Amend Some Nepal Acts, 2072.High Court. 15.

Maintenance of Records of Citizenship Certificates: Arrangements relating to the maintenance of records of Nepali citizenship certificates shall be as prescribed. 16. Rights, Duties, and Liabilities Not Extinguished: If a person's Nepali citizenship is terminated for any reason, his/her rights, duties, and liabilities in respect of any act done by him/her while being a citizen of Nepal shall not be deemed extinguished merely by reason of such termination of citizenship. 17. Correction of Details: (1) If a person's surname or age mentioned in his/her Nepali citizenship certificate differs from that in his/her educational qualification certificate, or if there are minor errors in the citizenship certificate, and such person wishes to correct such details, he/she shall submit an application to the prescribed authority along with necessary evidence. Explanation: For the purpose of this sub-section, "minor errors" refers to errors that do not materially alter the details mentioned in the citizenship certificate, such as: words like "Kumari", "Devi", "Bahadur", "Prasad" being included additionally or omitted, or variations in the use of diacritical marks, or other similar minor errors. (2) After an application is submitted pursuant to Sub-section (1), the concerned authority may, upon examining the evidence possessed by the applicant and witnesses and spot inspection as necessary, correct such details and revoke the previously taken citizenship certificate and issue another citizenship certificate. (3) If a woman

who has been married or divorced applies for modification of surname, domicile, or other details, the prescribed authority may, upon necessary inquiry, revoke the previously taken citizenship certificate and issue another citizenship certificate with the modified surname, domicile, or details. Amended by the second amendment.18. Petition May be Filed: (1) Except as otherwise provided in this Act, a person aggrieved by an order passed or decision made by an authority under this Act may, within thirty-five days from the date of knowledge of such order, file a petition through the concerned District Administration Office or directly to the Secretary of the Government of Nepal, Ministry of Home Affairs. (2) Upon receipt of a petition under Sub-section (1), the Secretary of the Ministry of Home Affairs shall obtain a report from the authority who passed the order or made the decision within thirty days, and within thirty days of receipt of such report, shall render his/her decision or order on the petition. The decision or order made by him/her shall be final. (3) Notwithstanding anything contained in Sub-sections (1) and (2), no petition shall lie under this section against an order or decision made by the Government of Nepal under this Act. 19. Publication of List: The list of persons removed from Nepali citizenship under Section 14 shall be published annually in the Nepal Gazette. 20.

Delegation of Authority: (1) The Government of Nepal may delegate any authority vested in it under this Act to any officer of the Government of Nepal. Provided, that the authority to remove from Nepali citizenship under Section 14 shall not be delegated. (2) The authority prescribed for distributing citizenship certificates under this Act may Amended by the second amendment.delegate some of the powers vested in him/her to an officer employee or an officer of at least Non-Gazetted First Class working as a head of office. 21. Punishment: (1) If a foreigner obtains Nepali citizenship by claiming to be a Nepali citizen and providing false information, he/she shall be liable to imprisonment for a term of one to five years or a fine of fifty thousand to one hundred thousand rupees, or both. If punishment is imposed under this sub-section for obtaining citizenship by providing false information, the citizenship so obtained shall automatically be revoked. (2) A person who attests or recommends in the act of securing citizenship for a foreigner based on false information shall be liable to imprisonment for a term of six months to three years or a fine of twenty-five thousand to fifty thousand rupees, or both. (3) If a person fabricates or creates a false or forged Nepali citizenship certificate and puts it into circulation, the person who does or causes to do such act shall be liable to imprisonment for a term of one to five years or a fine of twenty thousand to one hundred thousand rupees, or both. Added by the first amendment.(3a) If a self-declaration made by a person pursuant to Sub-section (7) of Section 3 or Clause (c) of Sub-section (3) of Section 5 Added by the second amendment.or Sub-section (5a) or Sub-section (5b) is found to be false, the person making such false self-declaration shall be liable to imprisonment for a term of six months to one year or a fine of fifty thousand to one hundred thousand rupees, or both. If punishment is imposed under this sub-section for obtaining citizenship by making a false self-declaration, the citizenship so obtained shall automatically be revoked. Added by the first amendment.(3b) If a person obtains Non-Resident Nepali Citizenship under Section 7a by providing false information, he/she shall be liable to imprisonment for a term of three months to one year or a fine of twenty-five thousand to fifty thousand rupees. If punishment is imposed under this sub-section for obtaining Non-Resident Nepali Citizenship by providing false information, the Non-Resident Nepali Citizenship so obtained shall automatically be revoked.

Added by the first amendment.(3c) If a self-declaration made by a person pursuant to Clause (a1) of Sub-section (1) of Section 8 is found to be false, the person making such false self-declaration shall be liable to imprisonment for a term of one to three years or a fine of one hundred thousand to three hundred thousand rupees, or both. If punishment is imposed under this sub-section for obtaining citizenship by making a false self-declaration, the citizenship so obtained shall automatically be revoked. Added by the first

amendment.(3d) If a person, without reasonable cause, fails to appear in response to a notice issued pursuant to Sub-section (3a) of Section 8, he/she shall be liable to imprisonment for a term of up to three months or a fine of up to ten thousand rupees, or both. (4) If a person voluntarily adds, deletes, or corrects details in an original citizenship certificate, the person who does or causes to do such act shall be liable to imprisonment for a term of up to three months or a fine of up to ten thousand rupees, or both. (5) If a person obtains a citizenship certificate by providing false information under Section 12, or if details corrected under Section 17 are proven false, the person providing such false information, or a person committing or causing to commit any other offence contrary to this Act or the rules framed under this Act, shall be liable to a fine of up to fifteen thousand rupees. (6) If an authority authorized to issue Nepali citizenship certificates, knowingly or with mala fide intent, issues a citizenship certificate or corrects the details in a citizenship certificate contrary to this Act or the rules framed under this Act, such office bearer or employee shall be subject to departmental action according to the prevalent law. (7) A person who attempts to commit or abets the commission of an offence punishable under Sub-sections (1), (2), and (3) shall be liable to half the punishment specified in that sub-section. 22. Citizenship Team may be Deployed: (1) The Government of Nepal may, if deemed necessary, deploy a Citizenship Certificate Distribution Team for the distribution of citizenship certificates. (2) The team deployed pursuant to Sub-section (1) shall distribute citizenship certificates subject to the directives given by the Government of Nepal. Added by the second amendment.22a.